

3 & 4 GEO. 6. *Ministry of Health* Ch. xxvi.  
*Provisional Order Confirmation (Norwich)*  
*Act, 1940.*



**CHAPTER xxvi.**

An Act to confirm a provisional order of the  
Minister of Health relating to the city of  
Norwich. [27th June 1940.]

**W**HEREAS under the provisions of the Public 38 & 39 Vict.  
Health Act 1875 the Minister of Health has c. 55.  
made a provisional order which needs confirmation by  
Parliament :

Be it therefore enacted by the King's most Excellent  
Majesty by and with the advice and consent of the Lords  
Spiritual and Temporal and Commons in this present  
Parliament assembled and by the authority of the same  
as follows :—

1. The order of the Minister of Health which is set Order in  
out in the schedule to this Act is hereby confirmed and schedule  
shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Short title.  
Provisional Order Confirmation (Norwich) Act 1940.



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**SCHEDULE.**

**CITY OF NORWICH.**

*Provisional order amending certain local Acts and a provisional order.*

WHEREAS the lord mayor aldermen and citizens of the city of Norwich acting by the council (in this order called "the corporation") carry on a water undertaking in pursuance of the Norwich Corporation Act 1920 the Norwich Corporation Act 1933 and the Norwich Order 1935 which was confirmed by the Ministry of Health Provisional Order Confirmation (Norwich) Act 1935 and supply water within certain limits :

And whereas the corporation have applied to the Minister of Health for a provisional order to amend the Norwich Corporation Act 1920 and the Norwich Order 1935 in the manner following :

Now therefore the Minister of Health in pursuance of the powers given to him by section 297 and section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

1. This order may be cited as the Norwich Order 1940 and shall come into operation on the date of the Act of Parliament confirming it.

2. In this order unless the context otherwise requires—  
 "the local Acts and order" means the Norwich Corporation Acts 1920 and 1933 and the Norwich Order 1935;  
 "the water limits" means the limits within which the corporation are authorised to supply water by the Norwich Corporation Act 1920 and the Norwich Order 1935;  
 "the added areas" means the areas added by this order to the water limits.

3.—(1) The water limits shall be extended so as to include the areas specified in the schedule to this order.

(2) Subject to the provisions of this order the corporation for the purposes of the supply of water within the added areas may exercise the powers which they are authorised to exercise by the local Acts and order and shall be subject to the obligations to which they are subject under the local Acts and order.

(3) Subject to the provisions of this order and to any necessary modifications the provisions of the local Acts and order shall extend to the added areas.

10 & 11  
 Geo. 5.  
 c. xcv.  
 23 & 24  
 Geo. 5.  
 c. xxvii.  
 25 & 26  
 Geo. 5.  
 c. lxxvi.

Short title  
 and com-  
 mencement.

Interpre-  
 tation.

Extension  
 of existing  
 water limits.



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4. Section 31 (Rates for supply of water for domestic purposes) of the Norwich Corporation Act 1920 shall have effect in its application to the added areas as if in subsection (1) of that section the word "ten" were substituted for the words "seven and a half."

Charges for supply of water in added areas.

5. Section 6 (Revision of rates and water charges) of the Norwich Order 1935 shall have effect in its application to the added areas as if the words "nineteen hundred and forty-three" were substituted for the words "nineteen hundred and thirty-eight."

Revision of water rates and charges.

6. The corporation may acquire by agreement and hold the waterworks constructed to supply the Kett's Oak Estate in the parish of Hethersett in the rural district of Forehoe and Henstead and may use and employ the same for the purpose of taking intercepting impounding and supplying water.

Acquisition of additional waterworks by agreement.

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**SCHEDULE.**

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**AREAS TO BE INCLUDED WITHIN THE WATER LIMITS.**

**1. In the rural district of Forehoe and Henstead—**

The parishes of Bramerton Caister Saint Edmunds (excluding that part which prior to the operation of the County of Norfolk Review Order 1935 comprised the parish of Markshall) Easton East Carleton Framingham Earl Framingham Pigot Great Melton Holverston Ketteringham Mulbarton Poringland Rockland Saint Mary Stoke Holy Cross Surlingham Swainsthorpe and Swardeston :

**2. In the rural district of Saint Faith's and Aylsham—**

The parishes of Belaugh Brampton Buxton with Lammas Coltishall Crostwick Frettenham Horstead with Stanninghall Salhouse Taverham Tuttington and Wroxham :

**3. In the rural district of Smallburgh—**

The parishes of Ashmanhaugh Horning Hoveton Neatishead Scottow Sloley Smallburgh and Tunstead.

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FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., Controller of His Majesty's Stationery Office  
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